

24AHCV00148 24AHCV00148

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-10

Motion: MOTION FOR SUMMARY JUDGMENT FILED BY TSE REALTY AND MANAGEMENT SERVICES, TIMOTHY TSE, CHRISTINA TSE, AND CYNTHIA TSE

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Case Number: 24AHCV00148 Hearing Date: July 10, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ANTONIO GUACHIA CARAC, et al.,

Plaintiff(s),

vs.

CONSOLIDATED
DISPOSAL SERVICE, LLC, et al.,

Defendant(s).

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CASE NO.: 24AHCV00148

[TENTATIVE]

ORDER RE: MOTION FOR SUMMARY JUDGMENT FILED BY TSE REALTY AND MANAGEMENT
SERVICES, TIMOTHY TSE, CHRISTINA TSE, AND CYNTHIA TSE

Dept.

3

8:30

a.m.

July 10,

2026

I.

INTRODUCTION

On March 30,
2026, Tse Realty and Management Services ("Tse Realty"), Timothy Tse, Christina
Tse, and Cynthia Tse (collectively, "Defendants") filed this motion for summary
judgment/summary adjudication. Defendants argue that plaintiff Antonio Guachiac
Carac ("Plaintiff") cannot prevail on his Second Cause of Action for violation

of Labor Code § 3706 because Plaintiff was not their employee. Defendants also argue that Plaintiff cannot prevail on his Third Cause of Action for premises liability because they cannot be held liable for injuries sustained by workers performing work delegated by an independent contractor.

On June 18, 2026, co-defendant Consolidated Disposal Service, LLC dba Republic Waste Services of Southern California, LLC ("Consolidated") filed an opposition brief directly solely to Defendants' motion for summary adjudication of Plaintiff's Third Cause of Action for premises liability.

Plaintiff filed an opposition brief on June 19, 2026, one day after the statutory deadline to do so. His evidentiary objections were filed on June 22, 2026.

Defendants filed reply briefs on June 29, 2026, in response to Plaintiff and Consolidated's opposition briefs.

II.

LEGAL STANDARD

In reviewing a motion for summary judgment or summary adjudication, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) To meet this burden of showing a cause of action cannot be established, a defendant must show not only "that the plaintiff does not possess needed evidence" but also that "the plaintiff cannot reasonably obtain needed evidence." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) A moving defendant need not conclusively negate an element of plaintiff's cause of action, but it is insufficient for the defendant to merely point out the absence of evidence. (*Id.* at p.

854; Gaggero v. Yura (2003) 108 Cal.App.4th 884, 891.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (Aguilar, supra, 25 Cal.4th at p. 855.) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (Ibid.)

III.

EVIDENTIARY OBJECTIONS AND REQUESTS FOR JUDICIAL NOTICE

Plaintiff’s

Evidentiary Objections Nos. 1 through 11 to the Declarations of Timothy Tse, Christina Tse, and Cynthia Tse: Overruled. The statements are not improper legal conclusions because they do not consist of abstract legal analysis with unsupported conclusions. The statements are descriptions of facts of each individual’s responsibilities within Tse Realty and their actions, which are based on personal knowledge and use terms also commonly used in legal analysis. (Murphy v. Pina (2025) 115 Cal.App.5th 305, 319.)

IV.

DISCUSSION

This case arises from an incident that occurred while Plaintiff cleaned a drain in the alley adjacent to the property located at 622 South Sixth Street, Alhambra, California (“Property”). The Property is owned by Tang Lang Shue (“Shue”) and managed by Tse Realty. (Defendants’ Undisputed Material Fact (“UMF”) Nos. 3-6.) None of the Defendants owned the Property; the Property was owned by Shue, who retained Tse Realty to manage it. (UMF Nos. 4-6.)

Plaintiff alleges that on January 11, 2023, he was present at the Property performing drain cleaning work. (FAC, ¶ 19.) At the same time, a trash collection vehicle operated by Ramon Morales (“Morales”), an employee of Consolidated, was in the driveway of the Property.

(FAC, ¶ 20.) The vehicle collided with Plaintiff, who sustained injuries to his right foot, which developed into an infection; Plaintiff's right foot was eventually amputated on or about January 15, 2023. (Ibid.) Plaintiff also sustained injuries to his neck, back, knees, and head. (Ibid.)

Plaintiff argues that Defendants are liable for his injuries because Defendants are his statutory employers pursuant to Labor Code § 2705.5 and failed to secure workers compensation. Defendants argue that they are not liable for Plaintiff's injuries because Plaintiff worked for Kenny Wan ("Wan"), who was hired by Tse Realty as an independent contractor.

Defendants argue that Wan was hired as an independent contractor and, because Plaintiff worked under Wan's supervision, Defendants had no relationship with Plaintiff. Defendants state that whether a worker is properly classified as an employee or an independent contractor depends on the "ABC test" adopted by the California Supreme Court in *Dynamex Operations West, Inc. v. Superior Court* (2018) 4 Cal.5th 903 and subsequently codified in Labor Code § 2775. According to Labor Code § 2775, a worker is presumed to be an employee for purposes of the Labor Code unless the hiring entity establishes each of the following:

(A) that the worker is free from the control and direction of the hiring entity in connection with the performance of the work;

(B) that the worker performs work outside the usual course of the hiring entity's business; and

(C) that the worker is customarily engaged in an independently established trade, occupation, or business of the same nature as the work performed.

(Labor Code, § 2775, subds. (b)(1)(a)-(c).)

Defendants argue that each subdivision of Labor Code § 2775(b)(1) is met. First, Wan is an independent contractor who worked as a self-employed handyman for approximately 30 years and was responsible for supplying labor for the work he performed. (UMF No. 10.) Indeed, Plaintiff does not dispute that he worked for Wan for approximately 14 years and entered into a formal written agreement when he began working for him. (UMF No. 15.) Also, Wan,

not Defendants, directed and supervised Plaintiff's work, supplied the necessary drain cleaning equipment, and trained Plaintiff to use such equipment. (UMF Nos. 20-21.) Plaintiff worked five days a week for Wan in 2022 and six days per week in 2023. (UMF No. 19.) Plaintiff also performed work for Wan at more than 50 properties and Wan paid him in cash for his work. (UMF Nos. 16, 22-23.) Plaintiff testified that he did not know Timothy Tse, had never met him, and had no recollection of ever doing work for him; he additionally admitted in discovery that he never received supervision from Timothy Tse or Tse Realty.

Second, Defendants argue that Plaintiff performed work outside the usual course of their business, which is property management, not field labor such as drain cleaning. (Motion, p. 9.) Defendants claim that such labor was performed by contractors like Wan, who typically supplied the tools and equipment necessary to complete any maintenance or repair job. (UMF Nos. 9-13.)

Third, Defendants argue that Plaintiff performed work as part of Wan's handyman operation, not within an employment relationship with them. For example, in addition to the above supervision, Plaintiff traveled with Wan to the Property and worked alongside Wan in performing the drain cleaning job. (UMF No. 58.)

Defendants then conclude that they have met their moving burden to show that Plaintiff was not an employee, but an independent contractor and that Defendants cannot be held liable under *Privette v. Superior Court* (1993) 5 Cal.4th 689 ("Privette"), which "holds that a hirer generally delegates to an independent contractor all responsibility for workplace safety and is not liable for injuries sustained by the contractor or its workers while on the job." (Gonzalez v. Mathis (2021) 12 Cal.5th 29, 40.) Once established, *Privette* creates a rebuttable presumption that the defendant delegated all its duties to employees of the contractor to the contractor. To defeat this presumption, the plaintiff must establish that one (or more) of the three exceptions to *Privette* applies. These three exceptions are set forth in *Hooker v. Department of Transportation* (2002) 27 Cal.4th 198, *McKown v. Wal-Mart Stores, Inc.* (2002) 27 Cal.4th 219; and *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659. If the plaintiff is able to meet this burden, the case is taken out of the scope of *Privette*, and general negligence principles apply.

However, Defendants fail to meet their moving burden to show no triable issues of material fact because Defendants failed to address whether Plaintiff is an employee under Labor Code § 2705.5. (Blackwell v. Vasilas (2016) 244 Cal.App.4th 160, 169.) In Blackwell, the Fourth Appellate District held that summary judgment was improper because the moving defendant did not meet its initial evidentiary burden to show that the purported contractor was, in fact, an independent contractor because the defendant did not introduce evidence that the contractor was either licensed or not required to be licensed. (Blackwell, supra, 244 Cal.App.4th at p. 167.) “[Labor Code] section 2750.5 creates a rebuttable presumption that a worker performing services for which a license is required is an employee and not an independent contractor. The statute also makes a valid license a condition of independent contractor status. The Supreme Court has interpreted this statute to provide that “the person lacking the requisite license may not be an independent contractor.” (Mendoza v. Brodeur (2006) 142 Cal.App.4th 72, 77 [citing State Compensation Ins. Fund v. Workers’ Comp. Appeals Bd. (1985) 40 Cal.3d 5, 15].) Labor Code § 2705.5 applies to tort cases as well as workers’ compensation cases, and Defendants cannot show that Privette applies if Defendants do not foreclose all theories by which Plaintiff can claim to be an independent contractor. (Blackwell, supra, 244 Cal.App.4th at pp. 170-171.) Accordingly, Defendants’ motion for summary judgment/summary adjudication fails.

VI. CONCLUSION

Defendants’ motion for summary judgment or, in the alternative, summary adjudication is DENIED.

Plaintiff to give notice.

Dated
this 10th
day of July
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.